



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles Bloom, AICP, Planning and Development Department
Subject: Resolution expressing the support of the Governing Body for acceptance of real property from Stephanie White
Date: October 14, 2024

Background:

The item for consideration is a resolution to allow the City to record Quitclaim deed resolving dual property ownership on a single lot. The subject lot is presently being developed with the gymnastics facility.

The proposed Governing Body review schedule is as follows:

- Introduction October 14, 2024
- Public Services Committee October 22, 2024
- Final consideration: October 28, 2024

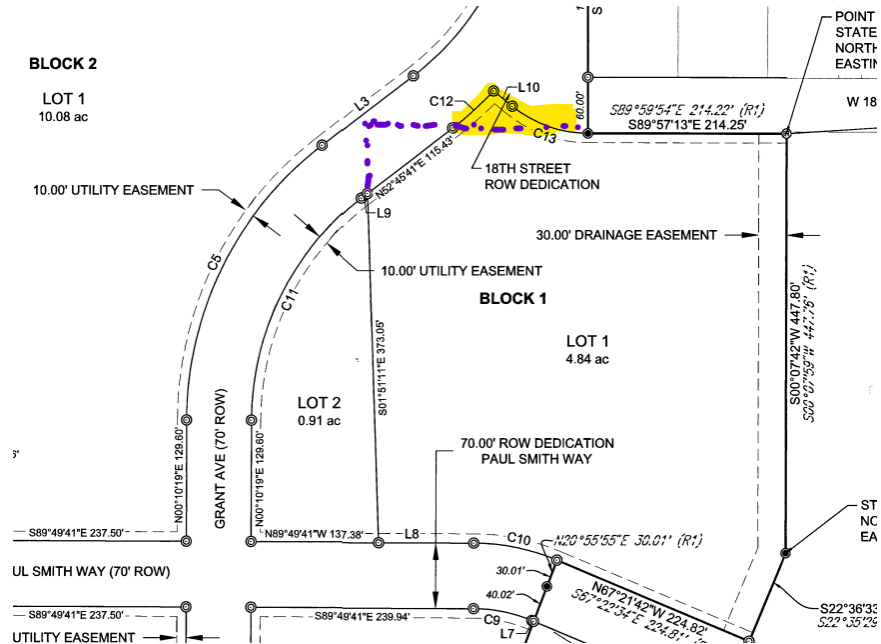
On November 16, 2022, the City and Stefanie White's limited liability corporation, Dozzer, LLC. A joint application for an Expedited Plat was filed on November 22, 2022, proposing the Back 40 Subdivision, Third Filing, Cheyenne, Wyoming. This was subsequently approved by the Governing Body on February 27, 2023, with adoption of Resolution No. 6307 which approved the Subdivision.

Original Parcel:



Platted Lot:

The dashed purple line shows the approximate property line of the City prior to platting, and the yellow highlighted area shows Dozzer LLC's property that was ultimately added to the final lot.



The attached Quitclaim deed conveys their ownership interest in Lot 1, Block 1 (including the highlighted area) to the City of Cheyenne. Quitclaim deeds to clarify lot ownership are common with the subdivision process. This land will be incorporated into the gymnastics facility site.

Attachments:

1. Resolution

QUITCLAIM DEED

That, Stephanie White, individually, GRANTOR, of 2770 Arapahoe Road, Ste 132, Lafayette, Colorado, 80026, for and in consideration of Ten Dollars (\$10.00) and other good and valuable consideration, the receipt whereof is hereby acknowledged, does hereby CONVEY AND QUITCLAIM, without any covenants of warranty whatsoever and without recourse to the GRANTOR, or GRANTOR'S successors and assigns, to the CITY OF CHEYENNE, 2101 O'Neil Ave., Cheyenne, WY 82001, GRANTEE, of the County of Laramie, and State of Wyoming, all of Grantor's right, title and interest, including any after acquired title, in and to the following described real property situate in the County of Laramie and State of Wyoming (the "**Real Property**"), so long as Grantee shall use said Real Property for "Community parks and recreation" purposes as further defined below, to-wit:

Lot 1, Block 1, Back 40 Subdivision, Third Filing

See plat of record recorded on June 29, 2023 in the Laramie County Clerk's Office under Reception No. 858500 in Book #13, Page #34.

For purposes hereunder, "community parks and recreation" shall mean public parks and recreational public works, including facilitating activities for the greater Cheyenne community such as sports, exercise, recreation services, classes, arts and crafts, cultural activities, music, drama and other social and community activities, and including but not limited to the planning and/or construction of indoor and outdoor recreational facilities, youth and senior citizen communities and facilities, city parks and playgrounds, and offices and support facilities related to the foregoing, all with the intent to improve and maintain the quality of life of the greater Cheyenne community and attract visitors to the area. Specifically, "parks" shall mean areas of land set aside for public use, maintained for the enjoyment and recreational use of people. "Recreation" shall mean the act of participating in experiences that result in achieving and maintaining the balance required for members of the public to live life fully and to realize their full potential.

The foregoing conveyance to GRANTEE is and shall be construed as a fee simple determinable. In the event that GRANTEE ceases using the above-described Real Property for community parks and recreation purposes, said Real Property shall immediately and automatically vest in and is hereby CONVEYED and QUITCLAIMED to the following parties in the specified order:

1. To DOZZER LLC, a Wyoming limited Liability company. However, the Real Property shall not vest in DOZZER LLC if: (i) DOZZER LLC is defunct, dissolved or otherwise not in legal existence as of the date Grantee ceases using the Real Property for community parks and recreation purposes; OR (ii) if the Grantee continues using the Real Property for community parks and recreation purpose for more than twenty one (21) years after the date of death of the last to survive of Stephanie White or any of Stephanie White's children born before October 1, 2016. If the Real Property fails to vest in DOZZER LLC and if Grantee

ceases using the Real Property for community parks and recreation purposes, it shall vest as further defined below.

2. To the then acting trustee(s) of the Stephanie White Revocable Trust under agreement dated June 16, 2015, as may be from time to time amended (hereinafter the "Trust"). However, this interest shall not vest in the Trust if: (i) the Trust is not in legal existence as of the date Grantee ceases using the Real Property for community parks and recreation purposes; OR (ii) if the Grantee continues using the Real Property for community parks and recreation purposes for more than twenty one (21) years after the date of death of the last to survive Stephanie White or any of Stephanie White's children born before October 1, 2016. If the Real Property fails to vest in DOZZER LLC or the Trust, and if Grantee ceases using the Real Property for community parks and recreation purposes, it shall revert to the Grantor as further defined below.

3. Reversion to Stephanie White, individually.

TO HAVE AND TO HOLD the premises unto the GRANTEE, its assigns and successors, to their own proper use and benefit forever in fee simple so long as the GRANTEE uses said premises for community parks and recreation purposes as defined herein, and subject, however, to all existing interest, including but not limited to easements, rights of way, restrictions, mineral reservations and encumbrances of record in the office of the County Clerk and Ex-Officio Register of Deed of Laramie County, Wyoming.

Hereby releasing and waiving all rights under and by virtue of the homestead exemption laws of the State of Wyoming.

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DATED this 3rd day of October, 2024.



Stephanie White, individually

STATE OF _____)

COUNTY OF _____)

The foregoing Quitclaim Deed was acknowledged before me by Stephanie White, in her individual capacity, GRANTOR, on this _____ day of _____, 2024.

Witness my hand and official seal.

See attached California All purpose Acknowledgment
Notary Public

My Commission expires: _____.

All-purpose Acknowledgment California

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

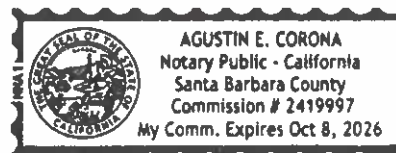
State of California

County of **Santa Barbara**

On **10/03/2024** before me, **Agustin E. Corona, Notary Public** (here insert name and title of the officer),
personally appeared **Stephanie White**

who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.



Notary Seal

WITNESS my hand and official seal.

Signature

A handwritten signature in blue ink, appearing to read 'Agustin E. Corona', written over a horizontal line.

For Bank Purposes Only

Description of Attached Document

Type or Title of Document **Quitclaim Deed**

Document Date **10/03/2024**

Number of Pages **3**

Signer(s) Other Than Named Above

Account Number (if applicable)



FO01-000DSG5350CA-01

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION EXPRESSING THE SUPPORT OF THE GOVERNING BODY FOR ACCEPTANCE OF REAL PROPERTY FROM STEPHANIE WHITE"

WHEREAS, Stephanie White, through her corporation, Dozzer, LLC, is engaged in the business of developing and redeveloping real estate;

WHEREAS, on November 16, 2022, the City of Cheyenne ("City") and Dozzer, LLC filed a joint application for an Expedited Plat proposing the Back 40 Subdivision, Third Filing, Cheyenne, Wyoming ("Subdivision");

WHEREAS, on February 27, 2023, the Governing Body adopted Resolution No. 6307 approving the Subdivision;

WHEREAS, approval of the Subdivision created Lot 1, Block 1 ("Lot") inadvertently creating joint ownership between the City and Dozzer, LLC;

WHEREAS, the creation of the Lot with joint ownership was unintended and is not in the best interest of the City and Dozzer, LLC;

Whereas, Dozzer, LLC, has agreed to donate certain real property to the City as described in a Quitclaim Deed (attached and incorporated herein as Exhibit A) for use by the City for the purpose of use as community parks and recreation;

Lot 1, Block 1, Back 40 Subdivision, Third Filing.

See plat of record recorded on June 29, 2023 in the Laramie County Clerk's Office under Reception No. 858500 in Book #13, Page #34.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the City of Cheyenne accept this donation of real property; and

BE IT FURTHER RESOLVED that the Mayor of the City of Cheyenne is hereby designated as the authorized representative of the City to act on behalf of the Governing Body on all matters relating to the donation of this real property and is authorized to execute any necessary agreements and associated documents.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk